

Tamil Nadu Agricultural University Act, 1971

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State of Tamilnadu- Act

Tamil Nadu Agricultural University Act, 1971

TAMILNADU

India

Tamil Nadu Agricultural University Act, 1971

Act 8 of 1971

Published on 26 April 1971

Commenced on 26 April 1971

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Tamil Nadu Agricultural University Act, 1971

Tamil Nadu Act

8 of 1971

Statement of Objects and Reasons - Tamil Nadu Agricultural University Act, 1971 (Tamil Nadu Act

8 of 1971

. - By the Tamil Nadu (Transferred Territory) Extension of Laws Act, 1957 (Tamil Nadu Act XXII of 1957), certain enactments in force in the State of Tamil Nadu were extended to the transferred territory in the State, namely, the Kanyakumari district and the Shencottah taluk of the Tirunelveli district. Again, many of the enactments in force in the State have also been extended to the transferred territory by separate enactments and by the Tamil Nadu (Transferred Territory) Extension of Laws Act, 1960 (Tamil Nadu Act 23 of 1960) certain other enactments in force in the State of Tamil Nadu were extended to the transferred territory. Subsequently, by the Tamil Nadu (Transferred Territory)

Extension of Laws Act, 1965 (Tamil Nadu Act 22 of 1965) certain other enactments in force in the State of Tamil Nadu, were extended to the transferred territory. It is now proposed to extend to that territory some more enactment in force in the State of Tamil Nadu and to repeal the corresponding laws in force in that territory.

2. Clause 3 of the Bill provides for the extension of Regulation V of 1631 without any modification. The enactment specified in clause 7 is proposed to be extended with the modifications specified in clauses 4,5 and 6.

Part IV ? Section 3, page 117 of the Tamil Nadu Government Gazette Extraordinary, dated the 29th March 1971.

Statement of Objects and Reasons - Tamil Nadu G. D. Naidu Agricultural University (Amendment) Act, 1992. - In the year 1990, the name of the Tamil Nadu Agricultural University was changed as the Tamil Nadu G. D. Naidu Agricultural University by amending the Tamil Nadu Agricultural University Act, 1971 (Tamil Nadu Act

8 of 1971

).

2. The change in the name of the Agricultural University as aforesaid created unrest among the students and the teachers of the University. Representations have been received from the students and the Tamil Nadu Agricultural University Teachers Association requesting the Government to rename the Tamil Nadu G. D. Naidu Agricultural University as the Tamil Nadu Agricultural University. The Academic Council and the Board of Management of the Tamil Nadu G. D. Naidu Agricultural University have also recommended to the Government that the said University be renamed as the Tamil Nadu Agricultural University. Further, almost all Agricultural Universities in India have been named after the States.

3. The Government have, therefore, decided to rename the Tamil Nadu G. D. Naidu Agricultural University as the Tamil Nadu Agricultural University and to amend the Tamil Nadu G. D. Naidu Agricultural University Act, 1971 (Tamil Nadu Act 8 of 1971

), suitably for the purpose.

4. The Bill seeks to give effect to the above decision.

Received the assent of the Governor on the 26th April 1971, first published in the Tamil Nadu Government Gazette Extraordinary on the 26th April 1971.

An Act to provide for the establishment of a University for the development of agriculture and for the furtherance of the advancement of learning and prosecution of research in agriculture and allied sciences in the State of Tamil Nadu.

Be it enacted by the Legislature of the State of Tamil Nadu in the Twenty-second Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title, extent, application and commencement.

(1)

This Act may be called the Tamil Nadu Agricultural University Act, 1971.

(2)

It extends to the whole of the State Tamil Nadu.

(3)

It applies to the agricultural colleges and institutions specified in the Schedule.

(4)

It shall come into force on such date as the Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"affiliated college" means any college affiliated to the University and providing courses of study for admission to the examinations for degrees, diplomas of other academic distinctions of the University;

(b)

"agriculture" means the basic and applied sciences of the soil and water management, crop production including production of all garden crops, control of plants, pests and diseases, horticulture including floriculture, animal husbandry including veterinary and dairy science, fisheries, forestry including farm forestry, home science, agricultural engineering

and technology, marketing and processing of agricultural and animal husbandry products, co-operation, land use and management and the economic and social uplift of the rural people;

(c)

"appointed day" means such date as the Government may, by notification, appoint under sub-section (4) of section 1;

(d)

"Board" means the Board of Management of the University;

(e)

"college" means any college or institution imparting education or prosecuting research or providing extension education, in agriculture;

(f)

"constituent college" means the Agricultural College and Research Institute, Coimbatore and the Agricultural College, Madurai and includes such other college as may be declared by the Board, from time to time;

(g)

"corresponding University" means,-

(i)

in relation to the Agricultural College and Research Institute, Coimbatore, the University of [Chennai]

[Substituted for 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

; and

(ii)

in relation to the Agricultural College, Madurai, the [Madurai University]

[Now Madurai-Kamaraj University, w.e.f. 22nd July 1978.]

;

(h)

"Dean" means the Dean of each college and includes the Dean of each Faculty;

(i)

"extension education" means the educational activities concerned with the training of farmers and home makers and other groups serving agriculture in improved agricultural practices and the various phases of scientific technology related to agriculture and agricultural production and marketing and includes demonstration to carry the new technology and innovation to farms and farm houses through the Government Departments of Agriculture, Animal Husbandry, Fisheries, Forests and the like;

(j)

"Faculty" means a Faculty of the University;

(k)

"Government" means the State Government;

(l)

"hostel" means a unit of residence for students of the University maintained or recognised by it either as part of, or separate from, a college of the University;

(m)

"prescribed" means prescribed by the statutes or regulations made under this Act;

(n)

"regulations" and "statutes" mean, respectively, the regulations and statutes made under this Act;

(o)

"Schedule" means the Schedule appended to this Act;

(p)

"State" means the State of Tamil Nadu;

(q)

"University" means the Tamil Nadu Agricultural University established under section 3.

Chapter II

The University

3.

Establishment of University.

(1)

For the development of agriculture and for furthering the advancement of learning and prosecution of research in agriculture and allied sciences, on and from the appointed day, there shall be established a University by the name Tamil Nadu Agricultural University.

(2)

The University shall be a body corporate, shall have perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

The principal seat of the University shall be located within the town limits of Coimbatore or in any place, within a radius of twenty-five kilometres around the town limits of Coimbatore.

4.

Objects of University.

- The objects of the University shall be-

(a)

to impart education in different branches of agriculture and allied sciences as the University may determine;

(b)

to further the advancement of learning and prosecution of research in agriculture and allied sciences; and

(c)

to undertake the extension of such sciences to the rural people in cooperation with the concerned Government departments.

5.

Powers and functions of University.

- The powers and functions of the University shall be-

(a)

to provide for instruction and training in agriculture and allied sciences;

(b)

to provide for instruction and training in agriculture and dissemination of knowledge in agriculture and allied sciences;

(c)

to provide for dissemination of the findings of research and technical information through extension education;

(d)

to institute degrees, diplomas and the other academic distinctions in agriculture and allied sciences;

(e)

to hold examinations and confer degrees, diplomas and other academic distinctions on persons who have-

(i)

pursued a prescribed course of study; or

(ii)

carried out research in the University under the prescribed conditions;

(f)

to confer honorary degrees or other distinctions in the prescribed manner and under the prescribed conditions;

(g)

to provide for lectures and instructions for field workers, farmers and other persons not enrolled as regular students of the University and to grant certificates to them, if necessary;

(h)

to co-operate with other Universities and authorities in such manner and for such purposes as it may determine;

(i)

to establish and maintain colleges relating to agriculture and allied sciences;

(j)

to affiliate colleges to the University under conditions prescribed and to withdraw affiliation from colleges;

(k)

to establish and maintain laboratories, libraries, research stations and museums for teaching, research and extension

education;

(l)
to institute teaching, research and extension education posts and to appoint persons to such posts;

(m)
to create administrative and other posts and to appoint persons to such posts;

(n)
to institute and award fellowships, scholarships and prizes in accordance with the statutes;

(o)
to establish and maintain or recognise hostels for students of the University and residential accommodation for the staff of the University;

(p)
to fix, demand and receive such fees and other charges as may be prescribed;

(q)
to supervise and control hostels and to regulate discipline of the students of the University and to make arrangements for promoting their health and welfare; and

(r)
to do all such acts and things, whether incidental to the powers and functions aforesaid or not, as may be necessary or desirable to further the objects of the University.

6.

Admission to University.

(1)
The University shall, subject to the provisions of this Act and the statutes, be open to all persons.

(2)
Nothing contained in sub-section (1) shall require the University,-

(a)
to admit to any course of study any person who does not possess the prescribed academic qualification or standard;

(b)
to retain on the rolls of the University any student whose academic record is below the minimum standard required for the award of a degree, diploma or other academic distinction;

(c)
to admit any person or retain any student whose conduct is prejudicial to the interests of the University or the rights and privileges of other students and staff; or

(d)
to admit to any course of study students larger in number than those prescribed.

(3)
[Subject to the provisions of sub-section (2), the Government may, by order, direct that the University shall reserve such percentage of seats for the students belonging to the Scheduled Castes, Scheduled Tribes and Backward Classes as may be specified in such direction and where such direction has been given, the University shall make the reservation accordingly.]

[Substituted by Tamil Nadu Act 23 of 1971, w.e.f. 1.6.1971.]

7.

Inspection and inquiry.

(1)
The Government shall have the right to cause an inspection to be made by such person or persons as they may direct,-

(a)
of the University, its buildings, laboratories, libraries, museums, workshops and equipments;

(b)
of any institution, college or hostel maintained by the University;

(c)
of the teaching and other work conducted by the University or under its auspices; or

(d)

of the conduct of any examination held by the University.

(2)

The Government shall also have the right to cause an inquiry to be made by such person or persons as they may direct in respect of any matter connected with the administration or finance of the University.

(3)

The Government shall, in every case, give notice to the University of their intention to cause an inspection or inquiry to be made, and the University shall be entitled to be represented at such inspection or inquiry.

(4)

The Government shall communicate to the University their views with reference to the result of such inspection or inquiry and may, after ascertaining the opinion of the University thereon, advise the University upon the action to be taken and fix a time limit for taking such action.

(5)

The University shall, within the time limit so fixed, report to the Government the action taken or proposed to be taken on the advice tendered by the Government.

(6)

If the University does not take action within the time limit fixed or if the action taken by the University is in the opinion of the Government not satisfactory, the Government may, after considering any explanation offered or representation made by the University, issue such direction as they may deem fit and the University shall comply with such direction.

(7)

If the University does not comply with such direction within such time as may be fixed in that behalf by the Government, the Government shall have power to appoint any person or body to comply with such direction and make such order as may be necessary for the expenses thereof.

Chapter III

Officers of the University

8.

Officers of University.

- The University shall consist of the following officers, namely:-

(1)

Chancellor;

(2)

Pro-Chancellor;

(3)

Vice-Chancellor;

(4)

Registrar;

(5)

Comptroller;

(6)

Dean;

(7)

Director of Research;

(8)

Director of Extension Education; and

(9)

Such other persons as may be declared by the statutes to be officers of the University.

9.

Chancellor.

(1)

The Governor of Tamil Nadu shall be the Chancellor of the University.

(2)

The Chancellor shall be the head of the University and shall, when present, preside at any convocation of the University

and confer degrees, diplomas or other academic distinctions upon persons entitled to receive them.

(3)

No honorary degree or other distinction shall be conferred by the University upon any person without the approval of the Chancellor.

(4)

The Chancellor may of his own motion or on application call for and examine the record of any officer or authority of the University in respect of any proceeding to satisfy himself as to the regularity of such proceeding or the correctness, legality or propriety of any decision passed or order made therein; and, if, in any case, it appears to the Chancellor that any such decision or order should be modified, annulled, reversed or remitted for reconsideration, he may pass orders accordingly:

Provided that every application to the Chancellor for the exercise of the powers under this section shall be preferred within three months from the date on which the proceeding, decision or order to which the application relates was communicated to the applicant:

Provided further that no order prejudicial to any person shall be passed unless such person has been given an opportunity of making his representation.

(5)

The Chancellor shall exercise such other powers and perform such other duties as may be conferred or imposed on him by this Act or the statutes.

10.

Pro-Chancellor.

(1)

The Minister-in-charge of the portfolio of Agriculture in the State shall be the Pro-Chancellor of the University.

(2)

When the Chancellor is unable to discharge his duties owing to absence, illness or any other cause, the Pro-Chancellor shall discharge the duties of the Chancellor until the date on which the Chancellor resumes his duties.

11.

Vice-Chancellor.

(1)

Every appointment of the Vice-Chancellor shall be made by the Chancellor from out of a panel of three names recommended by the committee referred to in sub-section (2) and such panel shall not contain the name of any member of the said committee.

[Provided that if the Chancellor does not approve any of the persons in the panel so recommended by the committee, he may take steps to constitute another committee, in accordance with sub-section (2), to give a fresh panel of three different names and shall appoint one of the persons named in the fresh panel as the Vice-Chancellor.]

[Added by the Tamil Nadu Act 52 of 1992.]

(2)

For the purpose of sub-section (1), the committee shall consist of three persons of whom one shall be nominated by the Board of Management, one shall be nominated by the Academic Council and one shall be nominated by the Chancellor: Provided that the person so nominated shall not be a member of any of the authorities of the University.

(3)

The Vice-Chancellor shall hold office for a term of [three years]

[Substituted for 'five years' by the Tamil Nadu Act 5 of 1993.]

from the date on which he enters upon his office and shall be eligible for re-appointment for not more than one successive term:

Provided that-

(a)

the Vice-Chancellor may, by writing under his hand addressed to the Chancellor and after giving two months' notice, resign his office;

(b)

the Vice-Chancellor may be removed from his office by the Chancellor upon a resolution of the Board passed by a majority of the total members of that Board and by a majority of not less than two-thirds of the members of that Board

present and voting.

(4)

In the event of the occurrence of any vacancy in the office of the Vice-Chancellor by reason of his death, resignation or removal, or otherwise, the Registrar shall act as Vice-Chancellor until the date on which a new Vice-Chancellor appointed in accordance with the provisions of this Act to fill such vacancy enters upon his office.

(5)

The Vice-Chancellor shall be a whole-time officer of the University and shall be entitled to such emoluments, allowances and privileges as may be prescribed by the statutes.

12.

Powers and duties of Vice-chancellor.

(1)

The Vice-Chancellor shall be the principal executive and academic officer of the University and shall, in the absence of the Chancellor and Pro-Chancellor, preside at the convocation of the University and confer degrees, diplomas or other academic distinctions upon persons entitled to receive them.

(2)

The Vice-Chancellor shall exercise control over the affairs of the University and shall be responsible for the due maintenance of discipline in the University.

(3)

The Vice-Chancellor shall convene meetings of the Board and the Academic Council.

(4)

The Vice-Chancellor shall ensure the faithful observance of the provisions of this Act, the statutes and regulations.

(5)

The Vice-Chancellor shall be responsible for the presentation of the annual financial estimates, annual accounts and balance sheet of the University to the Board.

(6)

In any emergency, which in the opinion of the Vice-Chancellor requires immediate action to be taken, he shall, by order, take such action as he deems necessary and shall at the earliest opportunity report the action taken to such officer or authority or body as would have in the ordinary course dealt with the matter:

Provided that no such order shall be passed unless the person likely to be affected has been given a reasonable opportunity of being heard.

(7)

Any person, aggrieved by any order of the Vice-Chancellor under subsection (6), may prefer an appeal to the Board within thirty days from the date on which such order is communicated to him and the Vice-Chancellor shall give effect to the order passed by the Board in such appeal.

(8)

The Vice-Chancellor shall be responsible for the co-ordination and integration of teaching, research and extension education.

(9)

The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by statutes.

13.

Registrar.

(1)

The Registrar shall be a whole-time salaried officer of the University and shall be appointed by the Vice-Chancellor with the approval of the Board on such terms and conditions as may be prescribed.

(2)

The Registrar shall exercise such powers and perform such duties as may be prescribed.

14.

Comptroller.

(1)

The Comptroller shall be a whole-time salaried officer of the University and shall be appointed by the Vice-Chancellor with the approval of the Board on such terms and conditions as may be prescribed.

(2)

The Comptroller shall advise the University in regard to its financial policy.

(3)

The Comptroller shall be responsible to the Vice-Chancellor for all accounting matters of the University including the preparation and presentation of the annual financial estimates, annual accounts and balance sheet.

(4)

The Comptroller shall-

(a)

ensure that no expenditure not authorised in the annual financial estimates as approved by the Board is incurred by the University; and

(b)

disallow any expenditure unwarranted by the terms of any statute or for which provision is required to be made by a statute but has not been so made.

15.

Dean.

(1)

Each college shall have a Dean who shall be a whole-time salaried officer of the University and shall be appointed by the Vice-Chancellor with the approval of the Board on such terms and conditions as may be prescribed.

(2)

The Dean shall be responsible to the Vice-Chancellor for all matters concerning his college.

(3)

The Dean shall exercise such powers and perform such duties as may be prescribed.

16.

Director.

(1)

The Director of Research and the Director of Extension Education shall be whole-time salaried officers of the University and shall be appointed by the Vice-Chancellor with the approval of the Board, subject to such terms and conditions as may be prescribed.

(2)

The Director of Research shall be responsible for its proper functioning of the research stations and shall co-ordinate research work in co-operation with the Dean and other officers and shall exercise such powers and perform such duties as may be prescribed.

(3)

The Director of Extension Education shall be responsible for the planning and execution of programmes of extension work based on the results of research and work in co-operation with the Dean and other officers and shall exercise such powers and perform such duties as may be prescribed.

16A.

[Vice-Chancellor and other officers, etc., to be public servants.

[Inserted by Tamil Nadu Act 15 of.1995.]

- The Vice-Chancellor, the Registrar, the Comptroller, the Dean, the Director of Research, the Director of Extension Education and other employees of the University shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code.]

Chapter IV

Authorities of the University

17.

Authorities of University.

- The authorities of the University shall be the Board of Management, the Academic Council, the Board of Studies of each Faculty and such other bodies of the University as may be declared by the statutes to be authorities of the University.

18.

Constitution of Board of management.

(1)

The Chancellor shall, as soon as may be, after the first Vice-Chancellor is appointed under section 45, Constitute a Board of Management.

(2)

The Board shall consist of the following members, namely:-

Class I-Ex-officio

(a)

Vice-Chancellor;

(b)

Secretary to Government, Agriculture Department;

(c)

Secretary to Government, Finance Department;

(d)

Director of Agriculture;

(e)

[Chief Engineer (Agricultural Engineering);]

[Substituted by Tamil Nadu Act 15 of 1995.]

(f)

[Director of Horticulture and Plantation Crops;]

[Substituted by Tamil Nadu Act 15 of 1995.]

(g)

Chief Conservator of Forests; and

(h)

Registrar.

Class II-Other Members

(a)

One agricultural scientist having special knowledge or practical experience in agricultural research, teaching and extension education nominated by the Chancellor;

(b)

one crop farmer nominated by the Chancellor;

(c)

one livestock farmer nominated by the Chancellor;

(d)

one representative of the agro-industries nominated by the Chancellor;

(e)

one woman social worker nominated by the Chancellor;

(f)

one educationist nominated by the Chancellor;

(g)

one nominee of the Indian Council of Agricultural Research;

[xxx]

[The word 'and' was omitted by Tamil Nadu Act 15 of 1995.]

(h)

[one member elected by the members of the Legislative Assembly of the State of Tamil Nadu from among themselves;]

[Substituted by Tamil Nadu Act 15 of 1995.]

Provided that no member so elected shall be disqualified for being a member of the Legislative Assembly; and

(i)

[two members representing agriculture, horticulture, agricultural engineering, agro processing, food processing or agro exports, nominated by the Government.]

[Substituted by Tamil Nadu Act 15 of 1995.]

[(2-A) In case the Secretary to Government, Finance Department, is unable to attend the meetings of the Board, for any

reason, he may depute any officer of his department not lower in rank than that of Joint Secretary to Government to attend the meetings. The officer so deputed shall have the right to take part in the discussions of the meetings and shall have the right to vote.]

[Inserted by Tamil Nadu Act 45 of 2000.]

(3)

The Vice-Chancellor shall be the ex-officio Chairman of, and the Registrar shall be the ex-officio Secretary to, the Board.

(4)

The term of office of the members of the Board, other than the ex-officio members, shall be three years and such members shall be eligible for re-appointment for not more than one successive term.

(5)

No officer or employee of the University, other than the Vice-Chancellor and the Registrar, shall be eligible to be a member of the Board.

(6)

The members of the Board shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed.

(7)

The Chancellor may, after giving a reasonable opportunity of being heard, remove any member of the Board other than an ex-officio member from office, if such member in the opinion of the Chancellor, is incapable of acting as a member or has abused his position as a member so as to render his continuance as such member detrimental to the interest of the University.

19.

Powers and duties of Board.

- The powers and duties of the Board shall be-

(a)

to consider and review the financial requirements and approve the annual financial estimates of the University;

(b)

to provide for the administration of any funds placed at the disposal of the University for the purposes intended;

(c)

to arrange for the investment and withdrawal of funds of the University;

(d)

to borrow money for capital improvements and to make suitable arrangements for its repayment;

(e)

to acquire, hold and dispose of property on behalf of the University;

(f)

to determine the form, provide for the custody, and regulate the use, of the common seal of the University;

(g)

to appoint such committees, either standing or temporary, as it may consider necessary and specify the terms of reference thereof subject to the provisions of this Act and the statutes;

(h)

to determine and regulate all questions of policy relating to the University in accordance with the provisions of this Act and the statutes;

(i)

to make financial provision for the instruction, teaching, research, advancement and dissemination of knowledge in such branches of learning and courses of study as may be determined by the Academic Council;

(j)

to provide for the establishment and maintenance of colleges, hostels, laboratories, experimental farms and other facilities necessary for carrying out the purposes of this Act;

(k)

to provide for the institution and conferment of degrees, diplomas and other academic distinctions;

(l)

to provide for the institution, maintenance and award of scholarships, fellowships, studentships, medals, prizes and the

like;

(m)

to accept trust, bequest donation and transfer of any movable or immovable property on behalf of the University;

(n)

to enter into contract on behalf of University; and

(o)

to exercise such other powers and perform such other duties not inconsistent with the provisions of this Act or the statutes as may be necessary for carrying out the purposes of this Act.

20.

Meetings of Board.

(1)

The Board shall meet at such times and places and shall, subject to the provisions of sub-sections (2) and (3), observe such rules of procedure, in regard to transaction of business at its meetings including the quorum at meetings as may be prescribed:

Provided that the Board shall meet at least once in every three months.

(2)

The Vice-Chancellor or in his absence, any member chosen by the members present, shall preside at a meeting of the Board.

(3)

All questions at any meeting of the Board shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(4)

(a)

The Board may, for purposes of consultation, invite any person having special knowledge or practical experience on any subject under consideration to attend any meeting. Such person may speak in, and otherwise take part in, the proceedings of such meeting but shall not be entitled to vote.

(b)

The person so invited shall be entitled to such daily and travelling allowances as are admissible to any member of the Board.

21.

Academic Council.

- The Academic Council shall be the academic authority of the University and shall, subject to the provisions of this Act and the statutes, have the control and general regulation of teaching and examination in the University and be responsible for the maintenance of the standards thereof.

22.

Constitution of Academic Council.

(1)

The Academic Council shall consist of the following members, namely:-

(a)

Vice-Chancellor;

(b)

Secretary to Government, Agriculture Department;

(c)

Dean of each College;

(d)

Dean of each Faculty;

(e)

Director of Research;

(f)

Director of Extension Education;

(g)

Six members from amongst the Heads of Departments to be nominated by the Vice-Chancellor on rotational basis;

(h)

Three persons having special knowledge or practical experience in different aspects of agriculture to be nominated by the Vice-Chancellor; and

(i)

Registrar.

(2)

The Vice-Chancellor shall be the ex-officio Chairman of, and the Registrar shall be the ex-officio Secretary to, the Academic Council.

(3)

The term of office of the members specified in clauses (g) and (h) of sub-section (1) shall be three years.

23.

Powers and duties of Academic Council.

- The powers and duties of the Academic Council shall be-

(a)

to exercise general control on teaching and other educational programmes and maintain and promote the standards thereof;

(b)

to make regulations and amend or repeal the same;

(c)

to make regulations regarding-

(i)

the admission of students to the University and the number of students to be admitted;

(ii)

the courses of study leading to degrees, diplomas and other academic distinctions; and

(iii)

the conduct of examinations and maintenance and promotion of standards of education;

(d)

to advise the Board on all academic matters including the control and management of libraries;

(e)

to make recommendation to the Board for the institution of Professorship, Readership, Assistant Professorship and other teaching posts including posts in research and extension education and in regard to the duties thereof;

(f)

to formulate, modify or revise schemes for the constitution or reconstitution of departments of teaching, research and extension education;

(g)

to make recommendation to the Board regarding post-graduate teaching, research and extension education;

(h)

to make recommendation to the Board regarding the qualifications to be prescribed for teaching and extension staff in the University;

(i)

to make recommendation to the Board for the conferment of honorary degrees or other distinctions; and

(j)

to exercise such other powers and perform such other duties as may be prescribed by the statutes.

24.

Faculties.

(1)

The University shall include Faculties of Agriculture, Basic Science, Agricultural Engineering, Animal Science, Home Science, Forestry, Fisheries and such other Faculties as may be prescribed by the statutes.

(2)

Each Faculty shall have a Dean who shall be appointed in such manner as may be prescribed.

(3)

Each Faculty shall comprise such departments of teaching with such assignment of subjects of study as may be prescribed and each department shall have a Head who shall be responsible to the Dean for the proper organisation and working of that department.

(4)

There shall be a Board of Studies for each Faculty, the constitution and functions of which shall be such as may be prescribed.

(5)

The constitution and functions of the Faculties shall, in all other respects, be such as may be prescribed:

Provided that not less than three-fourths of the total number of members of every Faculty shall be members of the Academic Council.

25.

Constitution of committees and delegation of powers.

- All the authorities of the University shall have power to constitute or reconstitute committees and to delegate to them such of their powers as they deem fit; such committee shall, save as otherwise provided, consist of members of the authority concerned and of such other persons, if any, as the authority in each case, may think fit.

Chapter V

Research and Extension Education Organisations

26.

Agricultural Research Organisation.

(1)

Subject to the provisions of this Act and the statutes, the University shall establish an Agricultural Research Organisation for doing basic research on problems primarily relating to agriculture and allied sciences for the purpose of aiding the development of agriculture and shall, for this purpose, establish as many agricultural research stations as may be necessary in co-operation with the department of Agriculture and the research stations under the control of the Government.

(2)

The Agricultural Research Organisation shall be developed under the guidance of the Director of Research.

27.

Agricultural Extension Education Organisation.

(1)

Subject to the provisions of this Act and the statutes, the University shall establish an Agricultural Extension Education Organisation which shall make available the information obtained on the basis of research to students, extension workers and agriculturists and shall conduct demonstration and training programme for the benefit of such persons in co-operation with the concerned Government departments.

(2)

The University shall undertake such agricultural extension education activities as are necessary-

(a)

to inform and demonstrate to the agriculturists the findings and developments of agricultural research on improved practices essential to uplift the conditions of rural living;

(b)

to increase agricultural production with special emphasis on food production and utilisation; and

(c)

to multiply nucleus seeds of improved varieties evolved or introduced by the Agricultural Research Organisation.

(3)

The Agricultural Extension Education Organisation shall be developed under the guidance of the Director of Extension Education.

Chapter VI

Funds and Accounts

28.

General Fund.

(1)

The University shall have a General Fund to which shall be credited-

(a)

its income from fees, endowments, grants, donations and gifts, if any;

(b)

any contribution or grant made by the Central Government, any State Government, the University Grants commission or like authority, any local authority or any corporation owned or controlled by the Government; and

(c)

other receipts.

(2)

The moneys in the General Fund shall be invested in the securities specified in clauses (a) to (d) of section 20 of the Indian Trusts Act, 1882 (Central Act II of 1882).

(3)

The University shall furnish such statements, accounts, reports and other particulars relating to any grant made by the Government and its utilisation, as the Government may require.

29.

Other Funds.

- The University may have such other funds as may be prescribed by the statutes.

30.

Management of Funds.

- The Funds and all moneys of the University shall be managed in such manner as may be prescribed.

31.

Grants.

- The Government shall, every year, make non lapsable lump sum grants to the University as follows:-

(a)

a grant not less than the net expenditure incurred in the year in respect of the activities of the institutions of agriculture and allied sciences and such other Government departments relating to agriculture and allied sciences as are transferred to the University;

(b)

a grant not less than the estimated expenditure on pay and allowances of the staff, contingencies, supplies and services of the University;

(c)

a grant to meet such additional items of expenditure, recurring and non-recurring, as the Government may deem necessary for the proper functioning of the University.

32.

Finance Committee.

(1)

The Board shall appoint a Finance Committee consisting of the following members, namely:-

(a)

Vice-Chancellor;

(b)

Secretary to Government, Agriculture Department;

(c)

Secretary to Government, Finance Department;

(d)

One member chosen by the Board from amongst its non-official members; and

(e)

Comptroller.

(2)

The Comptroller shall be the ex-officio Secretary to the Finance Committee.

(3)

The Finance Committee shall-

(a)

examine the annual accounts and the annual financial estimates of the University and advise the Board thereon;

(b)

review the financial position of the University, from time to time;

(c)

make recommendation to the Board on every proposal involving expenditure for which no provision has been made in the annual financial estimates or which involves expenditure in excess of the amount provided for in the annual financial estimates; and

(d)

make recommendation to the Board on all matters relating to the finances of the University.

33.

Annual accounts.

(1)

The annual accounts prepared by the Comptroller shall be submitted to such examination and audit as the Government may direct and a copy of the annual accounts and audit report shall be submitted to the Government.

(2)

The University shall settle objections raised in the audit and carry out such instructions as may be issued by the Government on the audit report.

(3)

The Government shall cause the annual accounts and the audit report to be laid before [the Legislative Assembly] [Substituted for 'both Houses of Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.] together with their comments.

(4)

The Comptroller shall, before such date as may be prescribed by the statutes, prepare the annual financial estimates for the ensuing year.

(5)

The annual accounts and the annual financial estimates prepared by the Comptroller shall be placed before the Board together with the remarks of the Finance Committee for approval at its annual meeting and the Board may pass resolution with reference thereto and communicate the same to the Comptroller who shall take action in accordance therewith.

Chapter VII

Conditions of Service

34.

Pension, gratuity, etc.

(1)

The University shall institute for the benefit of its officers, teachers and other employees such pension, gratuity, insurance and provident fund as it may deem fit, in such manner and subject to such conditions as may be prescribed.

(2)

Where the University has so instituted a provident fund under sub-section (1), the Government may declare that the provisions of the Provident Funds Act, 1925 (Central Act XIX of 1925), shall apply to such fund as if the University were a local authority and the fund a Government provident fund.

(3)

The University may, in consultation with the Finance Committee, invest the provident fund amount in such manner as it may determine.

Explanation. - For the purposes of this section and sections 35, 38 and 47, the word "officer" shall not include the Chancellor, the Pro-Chancellor and the Vice-Chancellor of the University.

35.

Conditions of service.

- Subject to the provisions of this Act, the appointment, procedure for selection, pay and allowances and other conditions

of service of officers, teachers and other employees of the University shall be as prescribed.

Chapter VIII

Statutes and Regulations

36.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

- (a)
the conditions under which the research in the University may be carried on;
- (b)
the manner in which and the conditions under which the honorary degrees and other distinctions may be conferred;
- (c)
the fixation, payment and receipt of fees and other charges;
- (d)
the prescription of academic qualification and standard for admission to the University;
- (e)
the terms and conditions subject to which the Registrar may be appointed and his powers and duties;
- (f)
the terms and conditions subject to which the Comptroller may be appointed;
- (g)
the terms and conditions subject to which the Dean of each college may be appointed and his powers and duties;
- (h)
the terms and conditions subject to which the Director of Research and the Director of Extension Education may be appointed and their powers and duties;
- (i)
the daily and travelling allowances to be paid to the members of the Board;
- (j)
the assignment of subjects of study for each Faculty;
- (k)
the constitution and functions of the Board of Studies of each Faculty;
- (l)
the constitution and functions of Faculties;
- (m)
the manner in which the Dean of each Faculty may be appointed;
- (n)
the establishment and management of the funds and moneys of the University;
- (o)
the manner of publication of the accounts audited;
- (p)
the period for which and the manner in which the instruction, teaching, training and holding examinations shall be conducted for the students of the colleges specified in section 40; and
- (q)
any other matter which is required to be or may be prescribed by the statutes.

37.

Statutes how made.

(1)

The Board may, from time to time, make statutes and amend or repeal the statutes in the manner hereinafter provided in this section.

(2)

The Academic Council may propose to the Board the draft of any statute to be passed by the Board and such draft shall be considered by the Board at its next meeting:

Provided that the Academic Council shall not propose any amendment to any statute affecting the status, powers or

constitution of any authority of the University until such authority has been given an opportunity of expressing its opinion upon the proposal and any opinion so expressed shall be considered by the Board.

(3)

The Board may consider the draft proposed by the Academic Council under sub-section (2) and may either pass the draft statute or reject or return with or without amendments to the Academic Council for reconsideration.

(4)

(a)

Any member of the Board may propose to the Board the draft of a statute and the Board may either accept or reject the draft, if it relates to a matter not falling within the purview of the Academic Council.

(b)

In case such draft relates to matter within the purview of the Academic Council, the Board shall refer it for consideration to the Academic Council, which may, after following the procedure laid down in the proviso to subsection (2), either report to the Board that it does not approve the draft or submit the draft to the Board, in such form, as the Academic Council may approve and the Board may either pass with or without amendments or reject the draft.

38.

Regulations.

(1)

Subject to the provisions of this Act and the statutes, the authorities of the University may make regulations to provide for all- or any of the following matters, namely:-

(a)

the manner in which and the conditions subject to which the pension, gratuity, insurance and provident fund may be instituted for the benefit of the officers, teachers and other employees of the University;

(b)

the appointment, procedure for selection, pay and allowances and other conditions of service of officers, teachers and other employees of the University;

(c)

the giving of notice to the members of any authority of the University, the dates of the meetings and the business to be transacted at the meetings and for keeping a record of the proceedings of the meetings;

(d)

the procedure to be observed at the meetings and the number of members required to form the quorum; and

(e)

any other matter which is required to be or may be prescribed by regulations.

(2)

The Academic Council may, subject to the provisions of the statutes, make regulations providing for the courses of study, system of examinations and award of degrees, diplomas and other academic distinctions of the University, after receiving the drafts of the same from the Board of Studies concerned.

(3)

The Board may issue such direction as it may think fit to the concerned authority to amend any regulation.

Chapter IX

Transfers of Colleges, Employees and Funds

39.

Transfer of certain colleges and institutions to University.

(1)

Notwithstanding anything contained in any other Act relating to the establishment of a University in the State or the statutes, ordinances, regulations and orders made thereunder, on and from the appointed day, the Agricultural College and Research Institute, Coimbatore and the Agricultural College, Madurai, shall be disaffiliated from the corresponding University to which they were affiliated on the date immediately preceding such day, transferred to, and maintained by, the University as its constituent colleges.

(2)

On and from the appointed day, the control and management of the colleges specified in sub-section (1) and all properties, assets and liabilities of the Government in relation thereto shall stand transferred to, and vest in, the

University.

(3)

The Government may, at any time after the appointed day, transfer to the University the control and management of any of their colleges on such terms and conditions as they deem proper.

(4)

Notwithstanding anything contained in any other Act relating to the establishment of a University in the State or the statutes, ordinances, regulations and orders made thereunder, on and from the date to be notified by the Government, the colleges or institutions referred to in sub-section (3) shall be disaffiliated from the University to which they were affiliated on the date immediately preceding the notified date and shall be deemed to be colleges or institutions affiliated to the University and the provisions of this Act shall, as far as may be, apply accordingly.

40.

Special provisions for students.

- Notwithstanding anything contained in this Act, the statutes or regulations, every student of a college specified in sub-section (1) of section 39 who immediately before the appointed day was studying in any college in the corresponding University or was eligible for any examination in the corresponding University shall be permitted to complete his course of study or be admitted to the examination in the Tamil Nadu Agricultural University and the Tamil Nadu Agricultural University shall make arrangements-

(a)

for the instruction, teaching, training and holding examination for such student for such period and in such manner as may be determined by the Chancellor, in accordance with the course of study in the corresponding University; and

(b)

for the conferment of the corresponding degree, diploma or other academic distinction of the University upon the qualified student on the result of such examination.

41.

New college to be constituent or affiliated college.

- On and from the appointed day, no new college imparting education in agriculture and allied sciences shall be established except as a constituent or affiliated college of the University.

42.

Transfer of service of certain employees.

(1)

(a)

As soon as may be, after the appointed day, the Government may, after consulting the Vice-Chancellor, direct by general or special order that such of the employees of the Government as are specified in such order shall stand allotted to serve in connection with the affairs of the University with effect from such date as may be specified in such order: Provided that no such order shall be issued in respect of any such employee without his consent for such allotment.

(b)

On and from the date specified in the order under clause (a), the persons specified in such order shall become employees of the University and shall cease to be employees of the Government.

(2)

Every person referred to in sub-section (1) shall hold office under the University by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension or gratuity, if any, and on the matters as he would have held the same on the date specified in the order under clause (a) of sub-section (1), as if this Act had not been passed.

43.

Transfer of accumulation in provident fund.

- The sums at the credit of the provident fund accounts of the employees referred to in sub-section (1) of section 42 as on the date specified in the order under clause (a) of the said subsection (1) shall be transferred to the University by the Government and the liability in respect of the said provident fund accounts shall be the liability of the University.

44.

Payment of certain moneys by corresponding University.

(1)

The corresponding University shall, out of its funds as on the appointed day, pay to the University such amount as the Government may, in consultation with the corresponding University, specify.

(2)

The amount payable under sub-section (1) shall be in addition to the amounts transferred under section 43.

Chapter X

Transitory Provisions

45.

Appointment of first Vice-Chancellor.

- Notwithstanding anything contained in sub-section (1) of section 11, within six months from the appointed day, the first Vice-Chancellor shall be appointed by the Chancellor on a salary to be fixed by him for a period not exceeding five years and on such other conditions as he thinks fit.

46.

Appointment of first Registrar.

- Notwithstanding anything contained in sub-section (1) of section 13, within three months from the appointed day, the first Registrar shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they think fit.

47.

Appointment of first University staff.

- Notwithstanding anything contained in this Act, the first Vice-Chancellor shall have power to appoint such officers and employees of the University as may be necessary subject to the sanction of the Government.

48.

Powers of first Vice-Chancellor.

(1)

It shall be the duty of the first Vice-Chancellor to make arrangements for constituting the authorities of the University specified in section 17 within six months after the appointed day or such longer period not exceeding one year as the Government may, by notification, allow.

(2)

The first Vice-Chancellor shall, with the assistance of an advisory committee nominated by the Chancellor, make such rules as may be necessary for the functioning of the University.

(3)

The authorities constituted under sub-section (1) shall commence to exercise their functions on such date or dates as the Government may, by notification, specify.

(4)

It shall be the duty of the first Vice-Chancellor to make such statutes and regulations as may be necessary with the approval of the Chancellor and submit them to the respective authorities competent to deal with them for their disposal. Such statutes and regulations when framed shall be published in the Tamil Nadu Government Gazette.

Chapter XI

Miscellaneous

49.

Annual report.

(1)

The annual report of the University shall be prepared under the direction of the Vice-Chancellor and submitted to the Board at least one month before the annual meeting at which it is to be considered.

(2)

The Board shall, after considering the annual report, forward a copy thereof to the Government.

(3)

On receipt of a copy of the annual report, the Government shall cause a copy of such report together with their comments thereon to be laid before the State Legislature.

50.

Suits and legal proceedings.

- In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the

Registrar and all processes in such suits and proceedings shall be issued to, and served on, the Registrar.

51.

Filling of casual vacancy.

- All casual vacancies among the members (other than ex-officio members) of any authority or other body of the University shall be filled as soon as conveniently may be and the person nominated in a casual vacancy shall be a member of such authority or body for the remainder of the term for which the member in whose place he is nominated would have held office:

Provided that no casual vacancy shall be filled, if such vacancy occurs within six months before the date of the expiry of the term of the member of any authority or other body of the University.

52.

Validation of acts and proceedings.

- No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the existence of a vacancy or of any defect or irregularity in the appointment of a member of any authority or of other body of the University or of any defect or irregularity in any such act or proceeding not affecting the merits of the case or on the ground that the Board did not meet once in every three months.

53.

Power to amend Schedule.

(1)

The Government may, by notification, alter, amend or add to the Schedule or omit any college or institution specified in the Schedule and upon the issue of such notification, the Schedule shall be deemed to be amended accordingly.

(2)

Every notification issued under sub-section (1) shall, as soon as possible after it is issued, be placed on the table of both [the Legislative Assembly]

[Substituted for 'both Houses of Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.]

, and if, before the expiry of the session in which it is so placed, or the next session, [the Legislative Assembly agrees]

[Substituted for 'both Houses agrees' by Tamil Nadu Adaptation of Laws Order, 1987.]

in making any modification in any such notification or [the Legislative Assembly agrees]

[Substituted for 'both Houses agrees' by Tamil Nadu Adaptation of Laws Order, 1987.]

that the notification should not be issued, the notification shall, thereafter, have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of any thing previously done under that notification.

54.

Tamil Nadu Act VII of 1923 and Tamil Nadu Act

33 of 1965

not to apply.

(1)

On and from the appointed day, the provision of the [Chennai]

[Substituted for 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

University Act, 1923 (Tamil Nadu Act VII of 1923) and the Madurai University Act, 1965 [***]

[Now Madurai-Kamaraj University Act w.e.f 22.7.1978.]

(Tamil Nadu Act

33 of 1965

) (hereinafter in this section referred to as the said Acts) shall cease to apply in respect of the agricultural colleges and the institutions to which this Act applies.

(2)

Such cesser shall not affect-

(a)

the previous operation of the said Act; or

(b)

any penalty, forfeiture or punishment, incurred in respect of any offence committed against the said Acts; or

(c)

any investigation, legal proceeding or remedy in respect of such penalty, forfeiture or punishment, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(3)

Notwithstanding anything contained in sub-section (1), all statutes, ordinances and regulations made under the said Acts and in force on the appointed day, shall, in so far as they are not inconsistent with the provisions of this Act, continue to be in force until they are repealed by statutes and regulations to be made under this Act.

55.

Repeal.

- The Tamil Nadu Agricultural University Ordinance, 1971 (Tamil Nadu Ordinance 2 of 1971), is hereby repealed.

Schedule

[See sections 1(3) and 53(1)]

(1)

Agricultural College and Research Institute, Coimbatore.

(2)

Agricultural College, Madurai.

(3)

All Research and Education Units situate within the Agricultural College and Research Institute, Coimbatore.

(4)

All Research and Education Units situate within the Agricultural College, Madurai.

(5)

Hybrid Production Scheme, Sathyamangalam.

(6)

Agricultural Research Station, Bhavanisagar.

(7)

Agricultural Research Station, Aliyar Nagar.

(8)

Groundnut Research Station, Pollachi.

(9)

Apple Research Station, Kodaikanal.

(10)

Fruit Research Station, Periakulam.

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